

## 25PR00485 Estate of Dewayne Jay Owens, Jr

County: santa-barbara

Division: Decedent's Estate

Department: 2 SM-Cook

Hearing date: 2026-06-02

Motion: Petition for Final Distribution

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Tentative Ruling: Estate of Dewayne Jay Owens, Jr

Case Number

25PR00485

Case Type

Decedent's Estate

Hearing Date / Time

Tue, 06/02/2026 - 09:00

Nature of Proceedings

Petition for Final Distribution

Tentative Ruling

Probate Notes:

Appearances required.

The following is noted for the Court at the hearing:

Defective Proof of Service of Notice of Hearing On Ashley Owens. The proof of service of Notice of Hearing on Ashley Owens shows service occurred on May 18, 2026, which is short of the 15 day requirement. Notice must be given 15 days prior to hearing, served on all known heirs and devisees, as well as on the Personal Representative (if not the petitioner) and special notice requestors. (Prob. Code, §§ 11601 & 1220.) Notice must be sent to the person, not the person's representative. (§1220.)

Therefore, due process has not been given to Ashley Ownes and the hearing must be continued.

Supplement re: Statutory fee. The proposed order indicates that attorney for petitioner expects a statutory fee of \$13,000 when the estate is not solvent. Attorney for petitioner must submit supplement explaining how the statutory fee will be paid.

Appearances:

The court is open to the public for court business. The court is also conducting hearings via Zoom videoconference.

Meeting ID: 160 543 3416

Passcode: 5053334

Judges

Judge James F. Rigali

Dept. 2 SM-Cook

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